

public entity is denied or deemed to be denied. (Gov. Code, § 946.6(b).) The petition must show: (1) that an application was made to the public entity under section 911.4 and was denied or deemed denied; (2) the reason for failure to timely present the claim to the public entity within the time limit specified in section 911.2; and (3) the information required by section 910. (Gov. Code, § 946.6(b).)

The Court is required to relieve petitioner from claim filing requirements if it finds that the application to the board under Section 911.4 was made within a reasonable time not to exceed one year after the incident, and was denied or deemed denied, and that the failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect. (Gov. Code, § 946.6 (b)-(c).)

Section 946.6 is a remedial statute intended to provide relief from technical rules that otherwise provide a trap for the unwary claimant. Accordingly, it is construed in favor of relief whenever possible. In order to implement this policy, any doubts should be resolved in favor of granting relief. (*Bettencourt v. Los Rios Community College Dist.* (1986) 42 Cal.3d 270, 275-276.)

III. Discussion

Petitioner seeks relief from the claims filing requirements on the ground that her counsel “believed, either mistakenly or correctly, that the subsequent government tort claim was redundant and unnecessary because the Contra Costa Water District received the original government tort claim from the City of Walnut Creek when the claim was tendered in June 2025.” (Declaration of John A. Holman in Support of Petition, hereinafter “Holman Decl.,” ¶17.) Further, the evidence indicates the District received actual notice from several sources, including by telephone call from petitioner herself, by a telephone call from the investigator working for petitioner’s counsel, and from written correspondence by the Municipal Pooling Authority.

The District responds that petitioner fails to meet her burden to show mistake, inadvertence, surprise, or excusable neglect. Notably, the District does not dispute that the October 9, 2025 correspondence qualifies as a “a written application” to submit a late claim pursuant to Government Code, section 911.4. Accordingly, although the claim was “returned” as being submitted later than six months after the incident, and although no official denial was issued, the claim is nevertheless deemed denied. (Gov. Code, § 911.6 (c).)

The grounds for granting the relief requested in an application to a public entity for leave to file a late claim are liberally applied. Notably, of the various statutory grounds for relief, only neglect is qualified by the adjective “excusable.” (*Shaddox v. Melcher* (1969) 270 Cal.App.2d 598, 601.) The Holman Declaration shows counsel was mistaken because he “believed” the subsequent tort claim was redundant and unnecessary” based on the earlier “tender” by the Municipal Pooling Authority. While the Court acknowledges the close question of whether counsel acted reasonably upon receiving notice in mid-July about proper presentation requirements, it resolves the question in petitioner’s favor in light of the remedial nature of Government Code, section 946.6.

When counsel has given actual notice to the public entity but has not properly presented a timely claim, the policy of the presentation requirement has been satisfied. (See *Bettencourt v. Los Rios Cmty. Coll. Dist.* (1986) 42 Cal.3d 270, 279.)

The Court finds that petitioner acted as a reasonably prudent person would have acted under the same or similar circumstances, and that she has shown mistake, surprise, inadvertence, or excusable neglect by a preponderance of the evidence. Accordingly the petition must be granted.

5. 9:00 AM CASE NUMBER: MSC20-01888

CASE NAME: BROWN VS. OUTREACH

*HEARING ON MOTION IN RE: ORDER FINDING ITS SETTLEMENT WITH DOUGLAS BROWN AND GLENDA BROWN TO BE IN GOOD FAITH

FILED BY: GENERATIONS CHURCH OF PLEASANT HILL

TENTATIVE RULING:

Unopposed by Outreach or any other interested party. **Motion granted.** The settlement between Plaintiffs Brown and Cross-Defendant Generations Church of Pleasant Hill was in “good faith” pursuant to CCP 877.6 and *Tech-Bilt v. Woodward Clyde* (1985) 38 Cal.3d 488. All claims included in the complaint (Browns v. Outreach) and the cross-complaint (Outreach v. Generations) are hereby **dismissed**.

6. 9:00 AM CASE NUMBER: MSC21-00076

CASE NAME: VALDIVA VS. AYALA

*HEARING ON MOTION IN RE: ENTRY OF FINAL JUDGEMENT

FILED BY:

TENTATIVE RULING:

Before the Court is Plaintiff Adriana Valdivia’s Motion for Entry of Final Judgment (“Motion”).

Plaintiff’s Motion is **denied** for the reasons set forth below.

Background Procedure

Plaintiff filed the original complaint for partition and related claims on January 15, 2021. The Court held a bench trial in June 2023, with an additional hearing on October 11, 2023. Thereafter, on January 12, 2024, the Court issued an Interlocutory Judgment. The Interlocutory Judgment indicated, in relevant part, that Plaintiff was entitled to partition of the real property located at 935 Kilkenny Way, Pinole, CA (the “Property”). The Court determined that the manner of partition would be determined after Plaintiff and Defendant had an “opportunity to meet and confer with each other as to whether Defendant will purchase Plaintiff’s interest or whether the property will be ordered sold on the open market.”

On February 29, 2024, Defendant filed a notice of appeal. The Court of Appeal affirmed the Court’s Interlocutory Judgment. The Petition to the California Supreme Court was denied. A remittitur was issued on September 16, 2025.

Plaintiff now moves for a Final Judgment to be entered even though the Property has not been sold, nor has a procedure for selling the Property been finalized. Defendant opposes the Motion as being premature.

Analysis

“A judgment is the final determination of the rights of the parties in an action or proceeding.” (Code of Civ. Proc. § 577.) “The general test for determining whether the judgment is final is ‘that where no issue is left for future consideration except the fact of compliance or noncompliance with the terms of the first decree, that decree is final, but where anything further in the nature of judicial action on